SECTION 1 · CASE 4

The Benin Bronzes

Who exactly is the thief? · Benin City (now in Nigeria), 1897 to today

In 1897, a British punitive expedition captured Benin City, burned the royal palace and removed thousands of brass plaques, ivories and commemorative heads. Many were auctioned in London to defray the cost of the expedition itself. Others entered Western museums over the following decades through purchase, donation and transfer. These were not currency or raw material: the plaques were the palace's own record of its dynasty, an archive kept in place.

Owner and loss are not in doubt. What is missing is the third condition. Each transfer was lawful where it took place, and every person in the chain can point to someone earlier. With no act the law named as a crime, the chain has no obvious thief — only a sequence of people who each acted correctly, and a benefit that passed down the line with the objects.

The question has since moved from who took the objects to who holds them now. In 2022 the Smithsonian transferred ownership of 29 objects to Nigeria's National Commission for Museums and Monuments. In 2023 Nigeria's outgoing president declared the Oba of Benin the owner of returned bronzes, and who should hold, keep and display them within Nigeria remains disputed. Returning an object settles ownership. It does not settle who is answerable for how it left.

OWNER ✓ LOSS ✓ LAW ✗ → Thief: no one?